

IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANTEE COUNTY, FLORIDA

AIR EXPERTS TODAY, CORP.,
and RYAN DIEDRICH,

Plaintiffs/Counter-Defendant,

v.

CASE NO.: 2023-CA-000172

MICHELLE KOHN,

Defendant/Counter-Plaintiff.

_____ /

ANSWER, AFFIRMATIVE DEFENSES AND COUNTERCLAIM

Defendant/Counter-Plaintiff, MICHELLE KOHN, (“Kohn”) by and through her undersigned attorney, hereby answers the Complaint as follows:

1. Admitted for jurisdictional purposes only, denied that the Plaintiffs sustained any damages.
2. Admit.
3. Without knowledge and therefore denied.
4. Admit.
5. Admitted for jurisdictional purposes only, denied that the allegations in the Complaint occurred.
6. Denied.
7. Without knowledge and therefore denied.
8. Denied.
9. Denied.
10. Denied.

11. Denied.

12. Denied.

13. Denied.

14. Denied.

15. Denied.

16. Denied.

17. Denied.

18. Denied.

19. Denied.

Count I

20. Admit only that Plaintiffs reallege the allegations but denied as to the substance of the allegations already denied.

21. Denied.

22. Denied.

23. Denied.

Defendant denies that the Plaintiffs are entitled to any of the relief requested in the Wherefore clause.

Count II

24. Admit only that Plaintiffs reallege the allegations but denied as to the substance of the allegations already denied.

25. Denied.

26. Denied.

27. Denied.

28. Denied.

29. Denied.

Defendant denies that the Plaintiffs are entitled to any of the relief requested in the Wherefore clause.

AFFIRMATIVE DEFENSES

Defendant, Kohn, hereby raises the following affirmative defenses:

FIRST AFFIRMATIVE DEFENSE

Some or all of the comments referenced in Plaintiffs' defamation claims are barred by the applicable statute of limitations, Fla. Stat. § 95.11(4)(g) and/or laches.

SECOND AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred because the statements at issue in this matter, or any implications or innuendos allegedly derived therefrom, are protected by the First and Fourteenth Amendments to the United States Constitution, Art. I. § 4, of the Florida Constitution, and by governing common law.

THIRD AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred as they fail to state a cause of action or claim for relief. Plaintiffs' allegations of defamation fail to meet the pleading standard for defamation claims as they lack requisite specificity. Further, the tortious interference claims are improper as they allege the same relationships with respect to each Plaintiff thus treating each Plaintiff as the same individual, and they seek duplicative relief. Plaintiffs also fail to identify the alleged third parties that form its business relationships which were allegedly interfered with by Kohn.

FOURTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred as the allegedly defamatory statements are absolutely or qualifiedly privileged.

FIFTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred because Plaintiffs reputation was so tarnished prior to the allegations with respect to the subject matter of the alleged statements at issue that the statements could not have caused Plaintiffs to suffer actual harm.

SIXTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred to the extent any of the statements referenced in the Complaint are true. Truth is a complete defense to Defamation claims. If upon a lawful occasion for making a publication he has published the truth, and no more, there is no sound principle which can make him liable, even if he was actuated by express malice. *Grad v. Copeland*, 280 So.2d 461, 468 (Fla. 4th DCA 1973).

SEVENTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred because the alleged statements, or any implications potentially derived therefrom, relate to matters of public concern.

EIGHTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred to the extent that the alleged defamatory statements are merely protected opinions.

NINTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred because the alleged defamatory statements are rhetorical hyperbole and unactionable.

TENTH AFFIRMATIVE DEFENSE

Plaintiffs sustained zero damages relating to the statements allegedly made by the Defendant and/or the damages allegedly sustained were not proximately caused by Defendant.

ELEVENTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred as Plaintiffs' failed to mitigate their alleged damages. Among other facts, Plaintiffs failed to request the alleged defamatory statements be removed to any mediums upon which they were posted.

TWELFTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred as Plaintiffs failed to provide notice to Defendant pursuant to Fla Stat. § 770.01.

THIRTEENTH AFFIRMATIVE DEFENSE

Plaintiffs have unclean hands and should therefore be precluded from relief. Plaintiffs who seek a remedy in equity with "unclean hands," which does not require the commission of a crime but only acts "condemned by honest and reasonable" persons, will be denied relief. *Roberts v. Roberts*, 84 So.2d 717, 720 (Fla. 1956). Among other facts, Plaintiffs engaged in publishing fraudulent reviews for Air Experts and negative fraudulent reviews of Kohn and thus have unclean hands.

FOURTEENTH AFFIRMATIVE DEFENSE

Plaintiffs' claims are barred as they are predicated upon fraud. Plaintiffs' allegations are entirely frivolous. Following Kohn's termination of her relationship with Diedrich and his ensuing arrest for burglary, he made clear his desire to retaliate against her. Knowing he had zero evidence of wrongdoing against Kohn, Diedrich fabricated false reviews using Kohn's name and used the

false reviews to sue her for defamation.

FIFTEENTH AFFIRMATIVE DEFENSE

Defendant alleges that at all times mentioned in the Complaint, any and all injury, damage, or loss, if any, allegedly experienced by Plaintiffs was directly and proximately caused and contributed to by Plaintiffs' own negligence or fault. As such, any recovery by Plaintiffs in this matter must be set off or reduced, or apportioned to the extent that Plaintiffs caused or contributed to their damages, if any.

SIXTEENTH AFFIRMATIVE DEFENSE

Plaintiffs claims fail to the extent the alleged tortious interference involves related parties to the Plaintiffs.

SEVENTEENTH AFFIRMATIVE DEFENSE

Plaintiffs are required to plead and prove that the alleged interference caused actual harm; however, Plaintiffs have failed to plead any allegation of actual damages being sustained from the alleged tortious interference.

EIGHTEENTH AFFIRMATIVE DEFENSE

Plaintiffs claim for tortious interference fails as there did not exist a special relationship that was interfered with. "In Florida, a plaintiff may properly bring a cause of action alleging tortious interference with present or prospective customers but no cause of action exists for tortious interference with a business's relationship to the community at large. As a general rule, an action for tortious interference with a business relationship requires a business relationship evidenced by an actual and identifiable understanding or agreement which in all probability would have been completed if the defendant had not interfered." *Ethan Allen v. Georgetown Manor*, 647 So. 2d 812,

815 (Fla. 1994) (internal citation omitted).

NINETEENTH AFFIRMATIVE DEFENSE

Should Plaintiffs be awarded damages, such damages must be offset and/or setoff by any and all money received from collateral sources.

TWENTIETH AFFIRMATIVE DEFENSE

Kohn asserts that the alleged damages complained of are the result of acts or omissions of a non-party. Kohn had no control over such entities and/or individuals and Kohn should be permitted to add such entities and/or individuals and any other unnamed entity to the verdict form, should the matter proceed to trial. *Fabre v. Marin*, 623 So. 2d 1182 (Fla. 1993)

Defendant asserts each and every defense available to her under the law and reserves the right to add, modify or delete affirmative defenses as discovery and investigation continue in this case.

WHEREFORE, Plaintiffs should take nothing by this action.

COUNTERCLAIMS

Counter-Plaintiff, Michelle Kohn (“Kohn”), by and through her undersigned attorney, files these Counterclaims against Counter-Defendant, Ryan Diedrich (“Diedrich”) and states:

PARTIES, JURISDICTION, & VENUE

1. This is an action for damages in excess of \$50,000.00, exclusive of interest, attorneys’ fees, and costs.
2. Kohn is an individual who resides in Manatee County, Florida.
3. Diedrich is an individual who resides in Manatee County, Florida.

4. Venue is proper in Manatee County, Florida because the causes of action accrued in Manatee County, Florida, the Defendant resides in Manatee County, Florida, and the subject action is currently pending in Manatee County, Florida.

5. Any conditions precedent to the commencement of this action have been performed, waived or excused.

BACKGROUND & GENERAL ALLEGATIONS

6. Kohn and Diedrich were engaged in a romantic relationship for roughly seven years. During the relationship, Kohn worked as a property manager and realtor and had developed a large professional network of individuals in the local real estate industry.

7. During the relationship, Diedrich owned and operated the HVAC corporation Air Experts Today Corp. (“Air Experts”). Kohn utilized her professional network to provide Diedrich numerous referrals which led to Air Experts drastically expanding its customer base.

8. On or around July of 2021, Kohn terminated her romantic relationship with Diedrich due to him engaging in increasingly hostile and aggressive behavior toward her. Diedrich would often become belligerent and would scream, threaten and assault Kohn.

9. Diedrich refused to accept Kohn’s desire to terminate her relationship with him and engaged in a pattern of stalking and harassment against her. In furtherance of his desire to harm Kohn, Diedrich filed a false police report against her accusing her of committing theft.

10. On September 22, 2021, law enforcement from the Manatee County Sheriff’s Office was investigating the false report by Diedrich that Kohn had allegedly stolen \$500.00 from him. During the investigation, it was found that there was no probable cause to support Diedrich’s criminal complaint against Kohn. Instead, the investigation uncovered that Diedrich had

committed a criminal burglary against Kohn following her termination of her relationship with him.

11. Kohn had previously not reported the burglary in fear of retaliation from Diedrich. However, law enforcement reviewed video surveillance footage that showed Diedrich acting extremely aggressive toward Kohn which led to an investigation of Diedrich's crimes against Kohn.

12. On July 4, 2021, Diedrich appeared at Kohn's residence visibly irate. Diedrich ripped down Kohn's Ring video surveillance camera in order to conceal the crimes he was about to commit against her. Diedrich then proceeded to the front screen door of Kohn's residence and ripped the screen panels in an aggressive manner causing damage and while screaming at Kohn. Next, Diedrich began ripping up garden pavers and threatening to throw one through the front door if Kohn failed to acquiesce to his demand to let him in. In fear of refusing to acquiesce to Diedrich's demands, Kohn opened her door and asked Diedrich to leave her alone. However, Diedrich pushed through the opened door and entered into Kohn's residence. Diedrich then shoved Kohn on her chest so hard that she fell backwards and scraped her leg on her table.

13. After Diedrich committed the battery on Kohn, he began gathering personal property from her residence while in a terrifying rage. During this process, Diedrich began breaking items and kicking Kohn's doors causing damage to her property as she continuously screamed in fear for her safety while begging Diedrich to leave. Diedrich then pushed Kohn again causing her to fall inter her garage door. Eventually, Diedrich left the residence, albeit in a state of disarray.

14. Following the burglary of her dwelling by Diedrich, Kohn became fearful for her and her daughter's life. Kohn began receiving dozens of calls from randomized numbers that were threatening. Diedrich began showing up to Kohn's residence and refusing to leave, leaving handwritten notes for her on her car, and making bizarre cryptic threats. As a single mother to a then seven-year-old daughter, Kohn was in such severe fear and emotional distress, that her daughter was temporarily sent to live with her daughter's biological father.

15. Diedrich was criminally charged with burglary of an occupied dwelling, criminal mischief, and battery of Kohn and eventually entered into a plea agreement to criminal mischief. As a condition of Diedrich's plea, he was prohibited from having any contact whatsoever with Kohn for a period of 24 months.

16. Despite the prohibition on Diedrich contacting Kohn, he continued to do so through phone calls, and electronic communications. Diedrich's continued communications only instilled further fear in Kohn.

17. Diedrich's continued communications and threats toward Kohn caused him to be charged criminally with violations of his probation. See Case No.: 2022MM000735 and 2022MM000085 which remain pending.

18. Diedrich engaged in an orchestrated scheme to ruin Kohn's real estate career through the use of fictitious negative online negative reviews and leads directed at Kohn in her capacity of a real estate agent.

19. Diedrich had a history of purchasing online reviews on a third-party website called Buy5stareviews.com. Typically, Diedrich utilized that website to bolster Air Experts' online

presence by misleading potential customers of Air Experts that it was receiving authentic five star reviews.

20. However, at some point in time, Diedrich became aware that Buy5stareviews.com also offered negative online reviews for purchase and utilized this service to purchase negative online reviews of Kohn's real estate business.

21. In furtherance of Diedrich's scheme to undermine the integrity of Kohn's real estate business, he began creating fictitious online profiles which were utilized for the sole purpose of destroying Kohn's real estate business.

22. On or around December 2, 2021, Diedrich began emailing Kohn from a fictitious name "Ross T", with an email address rosstbeaver@gmail.com. It was apparent to Kohn that Ross T was Diedrich and she therefore ignored communications from him and blocked him. Ross T responded "I don't know why you blocked me. I legitimately wanted to get to know you and ask for help finding a house/land." See Exhibit 1.

23. After Kohn did not respond to what was clearly fraud, Diedrich then sent another email as Ross T threatening Kohn that "Mr. Dalton may like to hear what I have to say." Ex. 1.

24. On December 5, 2021 Diedrich sent another email under the guise of a "Ross T" stating:

I guess you think you are better than me. Just letting you know that doesn't get you anywhere. My next step is to contact the state and put in a complaint. I all I wanted was some help with finding land or a house and get to know you. I feel sorry for you, but bitches will be bitches. I bet your ex's say the same.

Started with Zillow, will do realtor, Dalton wade and all others! Horrible realtor!

See Exhibit 2.

25. Kohn had never engaged in any business with a “Ross T” and was easily able to determine that Ross T was Diedrich. As such, she continued to ignore his communications and hoped to be left alone.

26. However, on or around December 12, 2021, after Kohn blocked all communications from Ross T, Diedrich began emailing Kohn from another fictitious name “Reed Savidge.”

27. While purporting to be Reed Savidge, Diedrich emailed Kohn with a subject heading of “WRATH” and provided that, “[t]he wrath of hell is coming and only you have the power to stop it. Think long and hard, you know what to do to end it.” See Exhibit 3.

28. On December 12, 2021, Diedrich continued under the false identify of Reed Savidge and emailed Kohn “[r]emember you have the power to stop this. Tomorrow you will see another negative review.” See Exhibit 4. The subject of the email was “POWER.”

29. The emails from Reed Savidge and Ross T were directed to Kohn by Diedrich during the time in which there was a no contact order entered against him from contacting Kohn. Kohn became increasingly fearful of Diedrich as he was willing to violate a no contact order to harass and intimidate her.

30. Diedrich’s fabricated emails became the subject of a criminal investigation that revealed that Reed Savidge was really Deidrich – as Kohn had assumed.

31. The State Attorney’s Office received documentation in response to a subpoena that showed that the subscriber Reed Savidge was in fact traced to Diedrich’s address located at 1515 60th St. E., Bradenton, FL, which is owned by Diedrich’s father. See Exhibit 5.

32. Diedrich had not just contacted Kohn directly under the name Reed Savidge, he also left false reviews under that name.

33. Diedrich left numerous false and defamatory reviews about Michelle Kohn Realty on Facebook, Realtor.com and Zillow.com. Diedrich posted the reviews through the use of numerous additional fictitious profiles (including Reed Savidge) that he created for the sole purpose of attempting to ruin Kohn's professional reputation. See Exhibit 6.

34. The reviews that were posted by Diedrich were negative and attempted to portray authentic experiences between Kohn and third parties that, in actuality, had never occurred.

35. The reviews by Diedrich caused Kohn's real estate business substantial irreparable harm.

36. In retaliation for Kohn continuing to move forward against Diedrich as a criminal victim, Diedrich created a fictitious one star review of his business Air Experts under Kohn's trade name "Dreams are Realty" and then sued Kohn for the review.

37. At all times after the termination of her relationship with Diedrich, Kohn has attempted to simply stay away from Diedrich and to avoid any communication with him or about him. Kohn has never left a review for Air Experts and the litigation that Diedrich initiated against her increased the fear, mental distress, and damage to her reputation that she has suffered due to Diedrich's malicious acts.

38. Kohn has retained The Cahall Law Firm, PLLC to represent her in this action and is obligated to pay the law firm reasonable attorney's fees for its services.

39. At all times relevant hereto, Diedrich's course of conduct toward Kohn was intentional, deliberate, and outrageous; that is, Diedrich's conduct went beyond all bounds of decency and is generally regarded as odious and utterly intolerable in a civilized community.

COUNT I – DEFAMATION PER SE/LIBEL

40. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

41. This is an action for defamation per se (libel) against Diedrich.

42. Diedrich published the attached false reviews about Kohn. The false reviews were entirely fabricated, posted under fictitious names and not based on actual client experiences. Further, the reviews were specially created with the intent of destroying Kohn's business reputation.

43. Diedrich published the false reviews of Kohn with malicious intent, and/or reckless disregard as to their falsity.

44. Diedrich's statements constitute defamation per se as they are of the type that tend to subject one to hatred, distrust, ridicule, contempt, or disgrace and/or are the type of statements that tend to injure one in her trade or profession.

45. Kohn sustained damage to her reputation as a result of Diedrich's false statements and suffered past, present, future emotional distress as well as actual monetary damages and loss of future earning potential.

WHEREFORE, Kohn requests judgment be entered against Diedrich for damages, pre-judgment and post-judgment interest, costs, and such other relief as the Court deems just and proper.

COUNT II – DEFAMATION PER QUOD

46. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

47. This is an action for defamation per quod (general defamation/libel) against Diedrich.

48. Diedrich published the attached false reviews about Kohn. The false reviews were entirely fabricated, posted under fictitious names, and not based on actual client experiences. Further, the reviews were specially created with the intent of destroying Kohn's business reputation.

49. Diedrich published the false reviews of Kohn with malicious intent, and/or reckless disregard as to their falsity.

50. Diedrich's statements constitute defamation per quod as Kohn sustained actual damages as a result of the defamatory statements.

51. Additionally, as a direct result of Diedrich's statements, Kohn sustained damage to her reputation and suffered past, present, future emotional distress.

WHEREFORE, Kohn requests judgment be entered against Diedrich for damages, pre-judgment and post-judgment interest, costs, and such other relief as the Court deems just and proper.

COUNT III – TEMPORARY INJUNCTION

52. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

53. This is an action by Kohn against Diedrich for entry of a temporary injunction against him.

54. Diedrich posted the attached fictitious reviews regarding Kohn's professional real estate services.

55. In addition to the reviews causing actual monetary damages, they have caused Kohn to suffer general ongoing harm to her reputation and have the propensity to cause continuing damage to Kohn's business reputation.

56. Kohn is without an adequate remedy at law because monetary damages are unable to provide her with a complete remedy as the reviews remain posted and the harm is continuing in nature. Additionally, Diedrich continues to publish additional fraudulent reviews against Diedrich under false profiles.

57. Kohn expects to prevail on the merits of her claim against Diedrich as evidence produced by the State of Florida already reveals Diedrich's guilt. Further, all other available evidence supports Diedrich as the perpetrator of the false reviews.

58. The potential threat to Kohn of having the negative reviews remaining posted substantially outweighs the threat of any harm to Diedrich if he is ordered to remove the defamatory material.

59. Granting this injunction count in favor of Kohn is in the interest of the public as the false reviews are misleading the general public, and the removal of false material online is of great importance to public safety.

WHEREFORE, Kohn demands judgment against Diedrich for a temporary injunction, costs, prejudgment interest, and any further relief this Court deems just.

COUNT IV – PERMANENT INJUNCTION

60. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

61. This is an action by Kohn against Diedrich for entry of a permanent injunction against him.

62. Diedrich posted the attached fictitious reviews regarding Kohn's professional real estate services.

63. In addition to the reviews causing actual monetary damages, they have caused Kohn to suffer general ongoing harm to her reputation and have the propensity to cause continuing damage to Kohn's business reputation.

64. Kohn is without an adequate remedy at law because monetary damages are unable to provide her with a complete remedy as the reviews remain posted and the harm is continuing in nature. Additionally, Diedrich continues to publish additional fraudulent reviews against Diedrich under false profiles.

65. Kohn will prevail on the merits of her claim against Diedrich as evidence produced by the State of Florida already reveals Diedrich's guilt. Further, all other available evidence supports Diedrich as the perpetrator of the false reviews.

66. The potential threat to Kohn of having the negative reviews remaining posted substantially outweighs the threat of any harm to Diedrich if he is ordered to remove the defamatory material.

67. Granting this injunction count in favor of Kohn is in the interest of the public as the false reviews are misleading the general public, and the removal of false material online is of great importance to public safety.

WHEREFORE, Kohn demands judgment against Diedrich for a permanent injunction, costs, prejudgment interest, and any further relief this Court deems just.

COUNT V – INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

68. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

69. This is an action for intentional infliction of emotional distress against Diedrich.

70. Following Kohn's termination of her romantic relationship with Diedrich, he engaged in an extreme and calculated effort to cause her to sustain severe emotional distress.

71. Diedrich intentionally or recklessly harmed Kohn by committing assaults and battery against her, destroying her personal property, stalking and harassing her, threatening her, filing a false police report against her, and defaming her business through the use of numerous fictitious online profiles.

72. Diedrich's actions caused Kohn to sustain severe emotional distress and has resulted in her incurring damages.

WHEREFORE, Kohn requests judgment be entered against the Diedrich for damages, pre-judgment and post-judgment interest, costs, and such other relief as the Court deems just and proper.

COUNT VI – COMMON LAW BATTERY

73. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within

74. This is an action for civil battery against Diedrich.

75. Following Kohn's termination of her romantic relationship with Diedrich, he committed a battery against her.

76. While committing a burglary against Kohn, Diedrich pushed Kohn multiple times causing her to fall into her personal property.

77. Due to Diedrich's act of unwanted and violent harmful touching of Kohn, she suffered physical injuries, past and future pain and suffering, and emotional distress.

78. Diedrich acted intentionally or with reckless disregard when he committed the act of battery against Kohn.

WHEREFORE, Kohn requests judgment be entered against the Diedrich for damages, pre-judgment and post-judgment interest, costs, and such other relief as the Court deems just and proper.

COUNT VII – ASSAULT

79. Counter-Plaintiff re-alleges paragraphs 1 through 39 as above as fully set forth within.

80. This is an action for assault against Diedrich.

81. During and following the termination of Kohn's romantic relationship with Diedrich, he regularly become belligerent and assaulted Kohn by approaching her while screaming aggressively and in a threatening manner toward her in close proximity to her face and with his fists clinched while moving in her direction in an attack-like manner. Diedrich would also aggressively chest bump in Kohn's face and, on one occasion, poured a bottle of water on her.

82. Additionally, on at least one occasion, Diedrich threatened to throw projectiles at the direction of Kohn should she not acquiesce to his demands.

83. Diedrich's actions constitute intentional, unlawful offers of corporal injury to Kohn by force under such circumstances as to create fear of imminent peril, coupled with the apparent present ability to effectuate the attempt. During the assaults, Diedrich was an adult male standing at roughly 6 feet and weighing 180 lbs. while Kohn was a small female with no self defense training.

84. Due to Diedrich's acts of assault against Kohn, she suffered severe emotional distress.

WHEREFORE, Kohn requests judgment be entered against the Diedrich for damages, pre-judgment and post-judgment interest, costs, and such other relief as the Court deems just and proper.

Attorney's Fees Demand: Counter-Plaintiff demands attorney's fees on all counts of this Complaint should they become awardable under Rule 1.442, Fla. R. Civ. P. and Section 768.79, Fla. Stat.

DEMAND FOR JURY TRIAL

Kohn demands a jury trial on any and all counts that the Court deems so triable.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 27th day of February, 2023, I electronically filed the foregoing with the Clerk of the Court by using the Florida Court E-Filing Portal, and designated that a copy of the filing be served on:

JESSE M. TILDEN, Esq.
Tilden & Prohidney, P.L.
service@tildenprohidney.com
431 12th St. W., Ste. 204
Bradenton, FL 34205
Attorney for the Plaintiff/Counter-Defendant

THE CAHALL LAW FIRM, PLLC
1215 Manatee Ave W, Ste. 106
Bradenton, Florida 34205
P: (941) 281-2019
/s/ Don Cahall

Don R. Cahall
Florida Bar No. 0110578
E-mail: don@cahalllawfirm.com
Attorney for the Defendant/Counter-Plaintiff

Subject: Re: Block

Date: Thursday, December 2, 2021 at 2:34:14 PM Eastern Standard Time

From: ROSS T

To: Michelle Kohn

Mr. Dalton may like to hear what I have to say.

On Thu, Dec 2, 2021 at 2:20 PM ROSS T <rosstbeaver@gmail.com> wrote:

I don't know why you blocked me. I legitimately wanted to get to know you and ask for help finding a house / land.

Subject: PROPERTY

Date: Sunday, December 5, 2021 at 9:36:51 PM Eastern Standard Time

From: ROSS T

To: Michelle Kohn

I guess you think you are better than me. Just letting you know that doesn't get you anywhere. My next step is to contact the state and put in a complaint. I all I wanted was some help with finding land or a house and get to know you. I feel sorry for you, but bitches will be bitches. I bet your ex's say the same.

Started with Zillow, will do realtor, dalton wade and all others! horrible realtor!

2021 030258

2021-030258

Subject: Wrath

Date: Sunday, December 12, 2021 at 9:36:19 PM Eastern Standard Time

From: REED SAVIDGE

To: Michelle Kohn

The wrath of hell is coming and only you have the power to stop it. Think long and hard, you know what to do to end it.

Subject: POWER

Date: Sunday, December 12, 2021 at 10:35:51 PM Eastern Standard Time

From: REED SAVIDGE

To: Michelle Kohn

Remember you have the power to stop this. Tomorrow you will see another negative review.

* Google Confidential and Proprietary *

21030258

GOOGLE SUBSCRIBER INFORMATION

RMS ATTACHMENT

Google Account ID: 126445785969
Name: REED SAVIDGE
Given Name: REED
Family Name: SAVIDGE
e-Mail: reedsavidge8075@gmail.com
Alternate e-Mails:

Created on: 2021-12-10 01:32:16 Z
Terms of Service IP: 179.61.245.13

Services: Gmail, Web & App Activity, Google Hangouts

Deletion Date:
Deletion IP:

Last Updated Date: 2021-12-15 23:49:03 Z
Last Logins: 2021-12-15 23:49:03 Z, 2021-12-15 05:24:43 Z, 2021-12-14 17:56:21 Z

ACCOUNT RECOVERY

Recovery e-Mail:
Recovery SMS:

PHONE NUMBERS

Signin Phone Numbers:
2-Step Verification Phone Numbers:

IP ACTIVITY

Timestamp	IP Address	Activity Type
2021-12-15 23:49:03 Z	179.61.245.49	Login
2021-12-15 05:24:44 Z	179.61.245.50	Login
2021-12-14 17:56:21 Z	179.61.245.48	Login
2021-12-14 02:40:49 Z	179.61.245.28	Logout
2021-12-13 03:34:06 Z	179.61.245.29	Logout
2021-12-13 03:34:01 Z	179.61.245.29	Login
2021-12-12 03:00:10 Z	65.32.208.28	Login
2021-12-12 02:33:01 Z	179.61.245.14	Login

2043

2021-12-10 01:32:17 Z	179.61.245.13	Login
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RMS ATTACHMENT

MADISON INFORMATION**MADISON ADMIN INFORMATION**

* Google Confidential and Proprietary *

3053



Madison Crutchfield
Privacy Specialist I

21.030258

April 22, 2022

Chris Gillum
Manatee County Sheriff's Office
600 us 301 blvd West
Bradenton , FL 34205
Re: Charter Subscriber Information Request Dated
Charter Case ID: 179820
Your Reference ID: 2021-030258

Dear Chris Gillum,

Charter Communications, Inc., ("Charter") acknowledges receipt of the above referenced request for subscriber information. Pursuant to the specific obligations imposed by 18 U.S.C. §2703, this letter is to advise you that Charter investigated and was able to identify the attached information.

Charter's billing and customer records from which the above information is obtained are subject to human error and Charter cannot always guarantee the accuracy of such records. You should not rely solely on this information and should always independently corroborate the information Charter provides with other information you have concerning the identity of the individual.

We understand this satisfies Charter's obligations in this regard. If you would like to discuss this matter, please contact me at (314) 394-9711. When calling, please reference Charter case number 179820.

Respectfully,

Madison Crutchfield

Madison Crutchfield, Privacy Specialist I
madison.crutchfield@charter.com
www.charter.com/lea

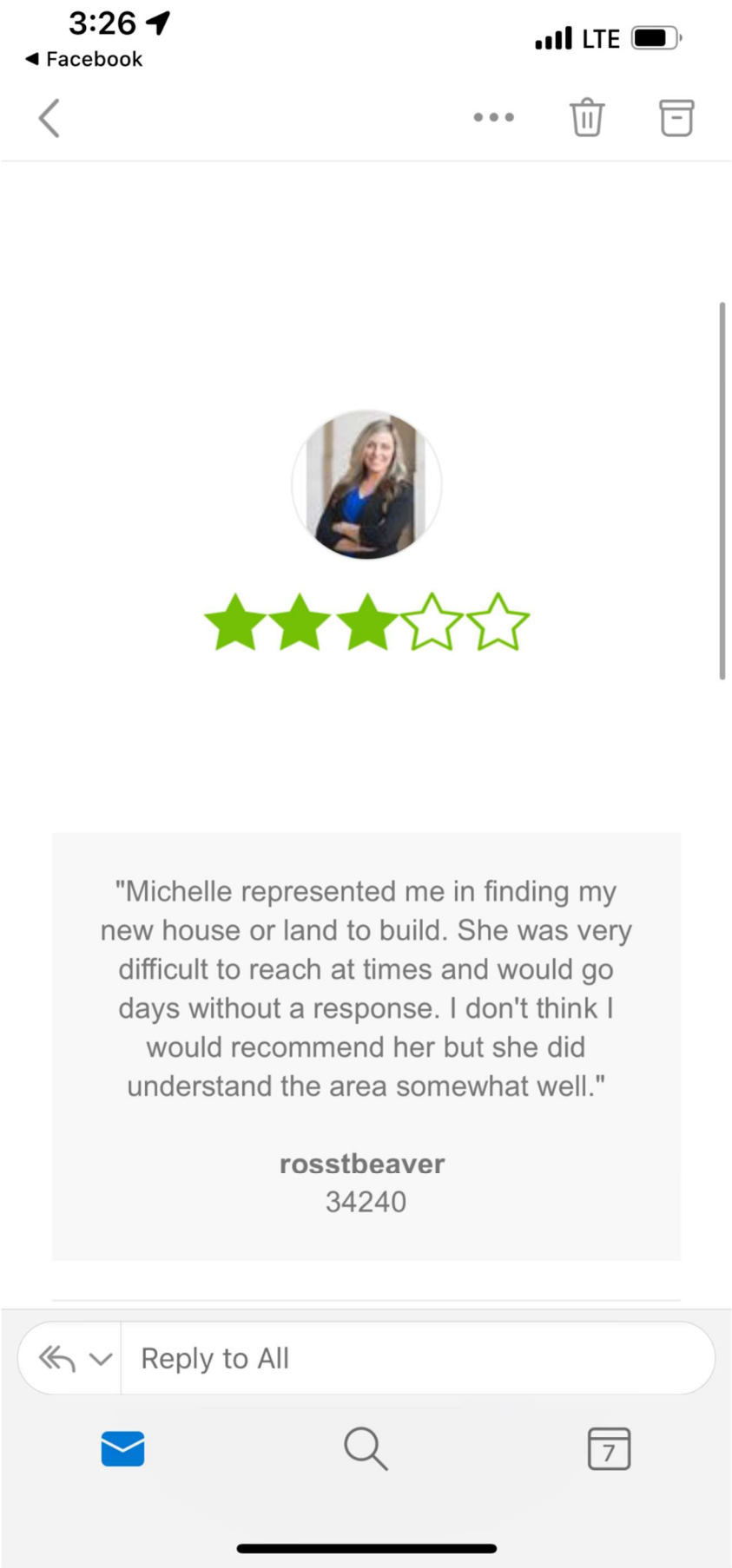
1063

21.030258

SUBSCRIBER RECORD

Target Details	65.32.208.28, 12/12/2021 3:00:10 AM, GMT, 0
Subscriber Name:	mike diedrich
Service Address:	1515 60TH ST E, BRADENTON, FL 342086367
Billing Address:	
User Name or Features:	MJDIED2526@GMAIL.COM
Phone number:	4197336815
Advanced Subscriber Info	
Account Number:	400092103
MAC:	1459C0444BED
Lease Log:	Start Date: 01/07/2020 07:49 PM End Date: 02/24/2022 08:18 PM
Equipment Details	
CM MAC:	441C12A8DCB4
Other Details	
Other Information:	NA

2063



4:08 ↗

◀ Facebook

📶 LTE 🔋



"Michelle had adequate knowledge for the local market however I just felt more comfortable with a seller agent for the luxury market. Michelle was very nice when I was able to establish communication with her. She was very hard to get a hold of."

reedsavidge8075

34240

Motivated home buyers and sellers rely on reviews to select a strong agent. When you have more reviews, you give your future



Reply



8:49 ↗



Responsiveness



Negotiation skills



Professionalism & Communication



We were clients of Michelle when we arrived in Florida. After we landed my husband and I could not reach her via telephone. We traveled around the area where we were looking for a home on our own. After several days of doing our own homework we heard back from Michelle. She did work with us but was very difficult to establish communication with her at times. In the end we decided to use the resources and knowledge of the agent that listed the home that we purchased

8:47

Safari



You have just received a review

Hello Michelle Kohn,

You received a review from one of your clients.

MayraS

600 Weston Pointe Ct Longboat Key FL
34228 in 2021

Overall rating



Market expertise



Responsiveness



11:00 ↗

◀ Facebook



AndyG

7560 Aguila Dr Sarasota FL 34240 in 2021

Overall rating



Market expertise



Responsiveness



Negotiation skills



Professionalism & Communication



Michelle had adequate knowledge for the local market however I just felt more comfortable with a seller agent for the



Reviews Given

ALL REVIEWS

1



Michelle Kohn Realty

very unprofessional and rude. The agent acted like ther...



9:58



Amardeep Bhullar



Amardeep Bhullar

You're friends on Facebook

Lives in Toronto, Ontario

Chief Executive Officer (CEO) & Founder at
Prolific Media Agency

SEP 22, 12:39 PM

Hey Michelle, came across
your page on Facebook and I
hope you're doing well. Are you
currently in real estate full-
time?



Hi Amardeep,
Yes I am 😊

Awesome, what area are you
serving primarily?



Manatee & Sarasota County-
primarily Lakewood Ranch,
Parrish, Bradenton & Sarasota



Aa



11:10



Alan Walker



9:53 AM

Can I speak to an agent?



i we provide any reviews

like Facebook reviews.
and Facebook reviews best for
business.
i see you don't have good
reviews.
if you want so i can help you
and my price also low.



WhatsApp 01315535407
telegram 01315535407
Skype buy5stareviews

Im not interested in fake
reviews.



Not fake but if your page real
so you can buy

no thank you



Okay thanks



Aa





About

Work

No workplaces to show

Education

No schools to show

Places Lived

No places to show

Reviews Given[See All](#)**Michelle Kohn Realty**

very unprofessional and rude. The agent acted like there was no value for her in my 300,000 house





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< Recent Reviews and Recommendations

3.7



Based on the opinion of 3 people 

Most Recent

Most Helpful



Deepak Paul  doesn't recommend
Michelle Kohn Realty.

52m • 

very unprofessional and rude. The agent acted like there was no value for her in my 300,000 house

Start a private conversation with Deepak Paul in Messenger.

Message



Like



Comment



Share



MiChele Fisher  recommends
Michelle Kohn Realty.

Feb 5, 2019 • 

Michelle does everything with good integrity & honesty. She is an amazing person.



You



11:10



Alan Walker



9:53 AM

Can I speak to an agent?



i we provide any reviews

like Facebook reviews.
and Facebook reviews best for
business.
i see you don't have good
reviews.
if you want so i can help you
and my price also low.



WhatsApp 01315535407
telegram 01315535407
Skype buy5stareviews

Im not interested in fake
reviews.



Not fake but if your page real
so you can buy

no thank you



Okay thanks



Aa

